

came to power, the minister fell from grace. In 338 BCE, subjected to the same harsh laws he himself had introduced, he was torn apart by chariots, and all members of his family were killed.

Historian Sima Qian (c. 145–86 BCE) wrote that Shang Yang deserved his fate, yet admitted that his policies were effective: “By the end of 10 years, the Qin people were quiet. Nothing lost on the road was picked up and kept, the hills were free of robbers, every household prospered, men fought bravely on the battlefield but avoided disputes at home.”

The greatest Legalist philosopher, Han Feizi (c. 280–233 BCE), argued that universally enforced and well-publicized laws benefited everyone by bringing order and predictability to life. Legalism made people do things they would avoid otherwise, such as working hard and fighting in wars. If the laws were resented, it was because the people were like infants who had no understanding of what was good for them.

Qin totalitarianism

The Qin state conquered the other warring states one by one until, in 221 BCE, King Zheng of Qin defeated Qi, the last independent kingdom, and declared himself Qin Shi Huang (First Exalted Emperor of Qin).

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When people are stupid, they are easy to govern.

Shang Yang

The Book of Lord Shang

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Across China, he imposed Legalism and a unified way of life, introducing standard currency, weights, and measures and a new, simpler writing system based on a single set of characters. Using forced labor, the emperor built the first Great Wall across the northern frontier, a network of roads, and a vast tomb, where he was later buried with a terracotta army to guard him.

Qin China was a totalitarian state where every aspect of people's lives was controlled. The emperor ordered a mass burning of books, and according to Sima Qian, he had 460 Confucian scholars buried alive. The first emperor's rule was so harsh that the Qin dynasty lasted just 4 more years after his death in 210 BCE.

Han reforms

In 206 BCE, Liu Bang, a rebel leader, seized power, founding the new Han dynasty, which created China's First Golden Age. While Legalism had been effective in a time of constant warfare, Confucianism,

The Terracotta Army, guarding the tomb of emperor Qin Shi Huang, was intended to protect him in the afterlife. As well as 8,000 warriors, the army includes chariots and horses.

which promoted social cohesion and loyalty to superiors, seemed more suitable when China was united and at peace. Under the Han, Legalism as a philosophy was discredited, and the harshest punishments were abolished. In 141 BCE, the seventh Han emperor, Wudi, adopted Confucianism as the state ideology. Confucius's *Analects* became a sacred book, memorized by generations of students.

Despite this, China remained an autocratic state, in which Confucianism was backed up by strict enforcement of the law—as one Chinese proverb says, the country is “Confucian on the outside, Legalist on the inside.” Confucius's ideal society, where laws and punishments were unnecessary, was never achieved. ■